



CHAPTER lxxviii.

An Act to regulate the use of the Mount Vernon Hospital Estate and the application of certain of the funds and investments in the hands of the Mount Vernon Hospital (Incorporated) and for other purposes. A.D. 1929.
[10th May 1929.]

WHEREAS the unincorporated institution formerly known as the North London Hospital for Consumption and Diseases of the Chest (hereinafter referred to as "the Institution") was founded in the year one thousand eight hundred and sixty and for many years carried on a public hospital for the relief of poor sick and infirm persons suffering from consumption diseases of the chest and heart and all other complaints :

And whereas by an indenture dated the twenty-seventh day of October one thousand eight hundred and seventy-five and made between William Gardner Arthur Richard Godson Charles William Hodson John Rae Thomas Sheffield Herbert Crichton Stuart Robert Westall and Thomas Young (therein described as the majority of the committee of management of the Institution) of the first part and the said William Gardner John Rae Thomas Sheffield and Herbert Crichton Stuart of the second part the said parties thereto of the second part declared that they and the survivors and survivor of them and the heirs of such survivor and their or his assigns would thenceforth stand seised of certain freehold hereditaments at Hampstead in the county of Middlesex (known later and

A.D. 1929. hereinafter referred to as “ the Mount Vernon Hospital
— Hampstead ”) upon trust to permit the said hereditaments
to be held used occupied and enjoyed by such persons for
such purposes and under and subject to such rules
regulations and restrictions and in such manner as the
committee of management for the time being of the
Institution should at any of their meetings order direct
or appoint and upon further trust in pursuance of such
resolution as therein mentioned to sell and dispose of the
said hereditaments and to stand possessed of the purchase
money upon and for such trusts intents and purposes
for the benefit of the said Institution as the majority of
the governors of the said Institution in annual meeting
assembled should from time to time direct or appoint :

And whereas shortly before the date of the indenture
next hereinafter recited Charles Dunell Rudd of 23
Hyde Park Gardens London esquire since deceased pre-
sented to the Institution the sum of fifteen thousand
pounds for the purchase of certain lands at Northwood
in the parish of Ruislip and county of Middlesex to the
intent that buildings for the purposes of the Institution
might be erected thereon :

And whereas by an indenture dated the first day of
October one thousand nine hundred and one and made
between Daniel Norton of the first part Marianne Wake-
field John Edward William Wakefield and Herbert Knott
of the second part and the Right Honourable Thomas
Charles Viscount Clifden Benjamin Abbott Lyon Alfred
Essex and William Forrest Malcolm (hereinafter referred
to as “ the said trustees ”) of the third part the lands and
hereditaments in the parish of Ruislip aforesaid which
are described in Part I of the First Schedule to this Act
were conveyed to the use of the said trustees in fee simple
as joint tenants the said lands and hereditaments being
purchased out of the said sum of fifteen thousand pounds :

And whereas by an indenture dated the eleventh day
of December one thousand nine hundred and one and
made between the Honourable Dudley Francis Fortescue
the said Charles Dunell Rudd Frederick Poynton Weaver
Henry Stedall the Reverend John Salwey junior the
Venerable Brook Deedes Alexander M. Arthur John
Samuel Fletcher Charles Johnston Lionel Ferneaux Knipe
Hill Charles Douglas Pidcock Alexander MacGregor
Basil Edwin Lawrence and Benjamin Abbott Lyon

(therein described as the majority of the committee of management of the Institution) of the one part and the said trustees of the other part the said trustees thereby declared that they the survivors or survivor of them and the executors or administrators of such survivor should and would at all times thereafter hold certain freehold hereditaments in the metropolitan borough of Saint Pancras known as No. 41 Fitzroy Square (then used as the out-patient department and as the offices of the Institution) upon the trusts declared concerning the Mount Vernon Hospital Hampstead by the said indenture dated the twenty-seventh day of October one thousand eight hundred and seventy-five or such of the same trusts as were then subsisting and capable of taking effect or as near thereto as circumstances would in the opinion of the council for the time being of the Institution permit and as a majority for the time being of the said council should by resolution duly passed authorise and determine : A.D. 1929.

And whereas by the said indenture dated the eleventh day of December one thousand nine hundred and one the said trustees further declared that they would at all times thereafter hold the lands and hereditaments in the parish of Ruislip conveyed by the hereinbefore recited indenture of the first day of October one thousand nine hundred and one and the buildings to be erected thereon upon the trusts thereinbefore by reference declared concerning the said hereditaments No. 41 Fitzroy Square aforesaid and upon further trust that the said hereditaments at Ruislip and the buildings to be erected thereon should at all times thereafter (until sale and subject as therein mentioned) be used for the purposes of the Institution under the management of its committee of management for the time being to the end that patients (as well paying as contributing or free) should and might whilst resident in the buildings so to be erected receive the benefit of the treatment known as the open air treatment as then practised at the Mount Vernon Hospital Hampstead or of such other treatment whether a modification of the said open air treatment or not as the committee of management of the Institution for the time being should from time to time authorise and approve :

And whereas in the year one thousand nine hundred and two No. 41 Fitzroy Square aforesaid being part of

[Ch. lxxviii.] *Mount Vernon* [19 & 20 GEO. 5.]
Hospital Act, 1929.

A.D. 1929. the lands comprised in the hereinbefore recited indenture dated the eleventh day of December one thousand nine hundred and one was sold and other lands being a messuage in the metropolitan borough of Saint Pancras known as No. 7 Fitzroy Square and the further lands at Ruislip aforesaid described in Part II of the First Schedule to this Act were purchased out of the general funds of the Institution the said further lands at Ruislip being conveyed to the trustees for the time being of the Institution upon such trusts and for such purposes of the Institution as were declared by the hereinbefore recited indenture dated the eleventh day of December one thousand nine hundred and one :

And whereas shortly after the date of the indenture last hereinbefore recited the Institution erected upon the lands described in Parts I and II of the First Schedule to this Act a hospital and accessory buildings which hospital buildings and lands are now known and are hereinafter referred to as "the Mount Vernon Hospital Northwood" :

And whereas the cost of laying out erecting equipping and furnishing the Mount Vernon Hospital Northwood amounted to two hundred thousand pounds or thereabouts of which one hundred and fifty thousand pounds was provided by the said Charles Dunell Rudd the balance of fifty thousand pounds or thereabouts being provided out of the general funds of the Institution :

And whereas the said Charles Dunell Rudd also provided from time to time the sum of twenty thousand pounds as a permanent endowment for the buildings at Mount Vernon Hospital Northwood and the said sum was invested in the investments particulars of which are set forth in Part I of the Second Schedule to this Act :

And whereas in the year one thousand nine hundred and one the name of the Institution was changed to "the Mount Vernon Hospital for Consumption and Diseases of the Chest" and in the year one thousand nine hundred and five the name was again changed to "the Mount Vernon Hospital for Tuberculosis and Diseases of the Lungs and Heart" :

And whereas consequent upon the passing of the National Insurance Act 1911 and the provision of facilities thereunder for the treatment of tuberculosis

the number of persons suffering from that disease resorting to the hospitals of the Institution for treatment diminished and in the year one thousand nine hundred and sixteen the Mount Vernon Hospital Hampstead was sold : A.D. 1929.

And whereas the Mount Vernon Hospital (Incorporated) (hereinafter referred to as "the Association") is a company limited by guarantee not having a share capital registered under the Companies Acts 1908 to 1917 on the thirtieth day of May one thousand nine hundred and twenty-four :

And whereas the objects for which the Association was incorporated include the following :—

- (a) To provide maintain and manage a hospital or hospitals with or without medical schools out-patients departments and nursing institutes or any of them for the treatment of patients suffering from tuberculosis and from diseases of the lungs and heart and where they may remain or at which they may attend for such period and upon such terms and conditions as the council of management may from time to time prescribe to provide accommodation for the treatment care and training of any such patients as may be able and willing to pay for the same according to their means and requirements and to provide and maintain farms gardens schools workshops or training centres for any such patients and to carry on handicraft work in connection therewith and to dispose by way of sale or otherwise of any articles there produced ;
- (b) To carry on the work of a general hospital or clinic and to establish and maintain dispensaries infirmaries convalescent and nursing homes and out-patients and other departments in connection therewith ;
- (c) To provide and carry on a department dealing with any of the above diseases or ailments in connection with any other general hospital ;
- (d) To provide for the treatment of cases in other hospitals or institutions and to investigate and carry out research work on the cause and cure of tuberculosis and all other diseases ;

A.D. 1929.

(e) To acquire and take over from the unincorporated institution known as "the Mount Vernon Hospital for Tuberculosis and Diseases of the Lungs and Heart" the whole or such part of its property and assets as can be legally vested in the Association and all or any of its liabilities and to take or procure to be taken all such steps as may be necessary for validly and effectually vesting any such property or assets in the Association and to undertake execute and perform any trusts or conditions affecting any such property and to undertake all or any trusts or liabilities of the said unincorporated institution and to continue the work now or hitherto carried on by such institution and to administer the real and personal property and assets of the said institution or such part thereof as aforesaid;

and other objects set forth in the memorandum of association :

And whereas by registered transfer dated the fifteenth day of July one thousand nine hundred and twenty-four the said premises No. 7 Fitzroy Square were conveyed by the then trustees of the Institution to the Association and on or about the same date the investment particulars of which are set forth in Part I of the Second Schedule to this Act and certain other investments and cash particulars of which are set forth in Parts II and III of the Second Schedule to this Act were transferred to the Association :

And whereas by an indenture dated the sixteenth day of July one thousand nine hundred and twenty-four and made between the then trustees of the Institution of the one part and the Association of the other part the Mount Vernon Hospital Northwood was conveyed unto the use of the Association and its assigns in fee simple for the purposes of the Association :

And whereas the Association has since carried on its hospital as a public hospital for the treatment of patients suffering from tuberculosis and from diseases of the lungs and heart and all other complaints out of moneys derived from the investments in its hands and from donations annual subscriptions and legacies of benevolent persons :

And whereas the number of persons resorting to the Mount Vernon Hospital Northwood for the remedial treatment of tuberculosis has continued to decrease owing to the provision of local public sanatoria and other institutions under the said Act of 1911 and it is becoming increasingly difficult to utilise to its full extent the equipment of and facilities provided by the hospital for the curative treatment of tuberculosis : A.D. 1929.
—

And whereas the number of applications for admission to the hospital of the Association from persons suffering from diseases other than tuberculosis has largely increased :

And whereas doubts have arisen as to the extent to which the Mount Vernon Hospital Northwood and No. 7 Fitzroy Square aforesaid and the investments and cash set forth in the Second Schedule to this Act have been or may lawfully be used or applied by the Association for the purposes of the Association or for purposes other than the treatment of tuberculosis and diseases of the chest :

And whereas as well for the removal of such doubts as for the furtherance and greater usefulness of the benevolent work carried on by the Association it is expedient that such provisions should be enacted as are in this Act contained :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Mount Vernon Short title.
Hospital Act 1929.

2. In this Act unless the context otherwise requires Interpreta-
the expression :— tion.

“ The Association ” means the Mount Vernon
Hospital (Incorporated);

“ The scheduled lands ” means the lands and here-
ditaments described in the First Schedule to

A.D. 1929.

this Act and the hospital and other buildings erected thereon;

“The scheduled capital investments” means the investments particulars of which are set forth in Parts I and II of the Second Schedule to this Act and the investments and cash for the time being representing the same;

“The scheduled general investments” means the investments and cash particulars of which are set forth in Part III of the Second Schedule to this Act and the investments and cash for the time being representing the same;

“The memorandum” means the memorandum of association for the time being of the Association.

Declaration
as to use of
scheduled
lands and
application
of scheduled
invest-
ments.

3. It is hereby declared that it shall be lawful and shall be deemed always to have been lawful for the Association while possessed of the same and notwithstanding the trusts (if any) affecting the same or any part thereof by virtue of the recited indenture dated the twenty-seventh day of October one thousand eight hundred and seventy-five or the recited indenture dated the eleventh day of December one thousand nine hundred and one or otherwise to use the scheduled lands or any part or parts thereof for and to apply the scheduled general investments or any of them or any part thereof and the income therefrom and to apply the income from the scheduled capital investments or any of them or any part thereof to any purpose incidental or conducive to the attainment of all or some or one to the exclusion of the other or others of the objects set forth in the memorandum.

Costs of
Act.

4. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Association.

The SCHEDULES referred to in the
foregoing Act.

A.D. 1929.
—

FIRST SCHEDULE.

PART I.

All those lands and hereditaments situate in the parish of Ruislip and county of Middlesex containing sixty acres or thereabouts and comprising the enclosures numbered 133b 142 142a 143 144 144a 145 and 152 and part of the enclosures numbered 133a 147 and 151 in the said parish on the $\frac{25}{100}$ Ordnance map Middlesex sheet IV. 16 edition of 1914.

PART II.

All those lands situate in the said parish of Ruislip containing forty-four acres and twenty-five poles or thereabouts and comprising the enclosures numbered 133 153 154 154a and 156 in the said parish on the said map and the remaining part of the said enclosures numbered 133a 147 and 151.

PART III.

All that messuage and premises (together with the stabling thereunto appertaining) known as No. 7 Fitzroy Square in the metropolitan borough of Saint Pancras.

SECOND SCHEDULE.

PART I.

£20,000 5% war stock 1929-47.

PART II.

£1,500 London and North Eastern Railway 4% 2nd guaranteed stock.

£1,500 London and North Eastern Railway 4% preference stock.

£2,125 London and North Eastern Railway 4% debenture stock.

£1,600 Southern Railway 4% debenture stock.

A.D. 1929.

PART III.

- £2,000 New South Wales 3% inscribed stock 1935.
 £2,000 New Zealand Government 3% inscribed stock 1945.
 £2,060 East Indian Railway 3½% debenture stock.
 £1,139/15/6 India 3½% stock.
 £5,900 London Midland and Scottish Railway 4% preference stock.
 £900 London and North Eastern Railway 4% preference stock.
 £2,600 Southern Railway 5% preference stock.
 £1,556 Southern Railway 4% debenture stock.
 £6,220/17/10 5% War Stock 1929-47.
 £628 London Midland and Scottish Railway 4% debenture stock.
 £231 London and North Eastern Railway 4% 1st preference stock.
 £6,980/7/0 Cape of Good Hope 3½% stock 1929-49.
 £5,907/18/7 New South Wales 4% stock 1933.
 £100 India 3% stock.
 £459/4/9 Queensland 4% stock 1924.
 £894 London Midland and Scottish Railway 4% guaranteed.
 £60 East Indian Railway 4½ debenture stock.
 £633/6/6 Metropolitan Water Board "B" stock.
 £530 London and County 3% stock.
 £23 Great Indian Peninsular Railway Annuities (class B).
 £1,698/2/7 Tasmania 4% stock 1940-50.
 £100 Scinde Punjaub and Delhi Railway Annuity (class B).
 £3,000 3½% War Loan 1925-28.
 £4,000 New South Wales 4½% inscribed stock 1922-27.
 £5,683/7/8 Ceylon Government 3½% inscribed stock 1934-59.
 £2,100 Great Western Railway 5% stock.
 £389/8/0 War Savings Certificates.
 £881/11/8 cash in hand and at the bank.

 Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

 To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
 Adastral House, Kingsway, London, W.C.2; 120, George Street, Edinburgh;
 York Street, Manchester; 1, St. Andrew's Crescent, Cardiff;
 15, Donegall Square West, Belfast;
 or through any Bookseller.